

113	Parrilla vs. Ethika, Inc. 2023-01362838	Motion for Approval of Class/PAGA Settlement Plaintiff Oksana Parrilla’s Motion for Preliminary Approval of Class Action and PAGA Settlement is CONTINUED to November 19, 2026 at 2:00 p.m. in Department CX102 in order to give Class Counsel an opportunity to address the issues identified below. This is a putative wage-and-hour class action and PAGA matter. On 11/21/2023, Plaintiff Oksana Parrilla, individually and on behalf of all others similarly situated, filed a class action complaint against Defendant Ethika, Inc. (ROA #2.) On 1/26/2024, Defendant answered. (ROA #13.) The operative complaint is the first amended complaint (FAC), filed on 3/3/2026 pursuant to the parties’ stipulation and the Court’s order (ROA #72), alleging various Labor Code wage-and-hour violations and unfair business practices, including a claim for PAGA penalties. (ROA #77.) On 4/6/2026, Defendant answered the FAC. (ROA #80.) On 5/19/2026, Plaintiff filed the instant Motion for Preliminary Approval of the Class Action and PAGA Settlement, and submitted the Joint Stipulation of Class Action and PAGA Settlement and Release (“Settlement Agreement”) and Class Notice for the Court’s review. The motion seeks preliminary approval of the parties’ proposed settlement of Plaintiff’s class and PAGA claims for the non-reversionary gross settlement amount (GSA) of \$550,000. The GSA includes \$25,000 allocated for PAGA penalties. The Court has identified the following issues with the Settlement Agreement and moving papers. Accordingly, the following issues must be addressed by Class Counsel before preliminary approval can be granted: 2. Class Members must have the option of submitting requests for exclusion, objections, and workweek disputes by fax and email in addition to by mail. 3. As worded, the definition of Released Class Claims at ¶ VI.A. of the Settlement Agreement is not properly tethered to only claims that were or reasonably could have been asserted based on the facts alleged in the complaint. Therefore, the release should be revised to state: “any and all wage-related claims, rights, demands, damages, liabilities, and causes of action, in law or in equity, <i>that were or reasonably could have been asserted based on the facts alleged in the complaint</i>, as defined herein, against Defendant, <i>including the following claims for: . . .</i>” (Emphasis added to denote edits.) 4. As worded, the definition of Released PAGA Claims at ¶ VI.B. of the Settlement Agreement is not properly tethered to only claims that were or reasonably could have been asserted based on the facts alleged in Plaintiff’s PAGA Notice to the LWDA. Therefore, the release should be revised to state: “any and all claims, actions, and causes of action for PAGA civil penalties, <i>that were or reasonably could have been asserted based on the facts alleged in the PAGA Notice</i>, as defined herein, against Defendant, <i>including claims for</i>
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PAGA penalties based upon or arising out of Defendant's alleged violations of”

Class Counsel must also provide the Court with a revised Class Notice with the following revisions:

1. The notice should be revised so as to be consistent with the resolution of the issues identified above.
2. The notice should state that any Class Member who does not request exclusion may, if the Member so desires, enter an appearance through counsel. (Cal. Rules of Court [CRC], rule 3.766(d)(5).)
3. The notice should specify that the judgment, “whether favorable or not,” will be binding all Class Members who do not request exclusion. (CRC, rule 3.766(d)(4).)

Class Counsel must also provide a revised [Proposed] Order Granting Preliminary Approval with the following revisions:

1. The proposed order should be revised to incorporate the relevant revisions identified above, including attaching the revised Class Notice.
2. Attorney information must be deleted from the caption page.
3. The date for the preliminary approval hearing should be updated to reference the continued hearing date.
4. The proposed order should reference by name and ROA number all the declaration(s) to which the Settlement Agreement and any amendments thereto are attached.
5. The proposed order should specify the amount of the GSA and the amounts proposed to be allocated from the GSA to attorneys’ fees, litigation costs, enhancement(s), administration costs, and PAGA penalties (including to the LWDA and to Aggrieved Employees).
6. Counsel should not leave blank but should instead propose a realistic Final Approval hearing date, taking into account the deadlines associated with mailing and remailing the notice and responses thereto and the documentation required to support final approval (including but not limited to time records or a summary of time spent by Class Counsel so as to enable the Court to evaluate the lodestar and attorneys’ fee request; detailed litigation cost breakdowns; an Administrator declaration and invoice; and Plaintiff’s declaration to support the enhancement request). The Court usually sets these hearings at least 4 months after preliminary approval. All supporting papers must also be filed at least sixteen (16) court days before the Final Approval hearing date.
7. The proposed order should specify the Court’s continuing jurisdiction is pursuant to both California Code of Civil Procedure section 664.6 and California Rules of Court, rule 3.769(h).

The Court further refers Class Counsel to the “Guidelines for Approval of Class Action Settlements & PAGA Settlements” posted on the Court’s

		website for Department CX102, available at https://voypubapps.occourts.org/complex-civil-calendar. Class Counsel must file supplemental papers addressing the Court's concerns no later than sixteen (16) court days prior to the continued hearing date. Counsel must also provide redlined versions of all revised papers and an explanation of how the pending issues were resolved with precise citation to any revisions. A supplemental declaration or brief that simply asserts the issues have been resolved is insufficient and will result in a further continuance. If supplemental papers addressing all of the Court's concerns cannot be filed by the pre-hearing deadline, Class Counsel must request a continuance. Failure to do so may result in the issuance of an Order to Show Cause re Monetary Sanctions. Plaintiff is ordered to give notice of this Court's ruling, including to the LWDA, within five (5) court days, and file proof of service.
114	Silva vs. Premier Chevrolet of Buena Park, LLC 2021-01218096	Motion for Approval of PAGA Settlement The Court has reviewed the supplemental materials provided by Plaintiff's and Defendants' counsel and finds that with a few exceptions, they adequately address the previously identified issues. Accordingly, the joint Motion for Court Approval of the Parties' PAGA Settlement Approval filed by (1) Defendant Premier Automotive of Buena Park, LLC dba Premier Chevrolet of Buena Park (erroneously sued as Premier Chevrolet of Buena Park, L.L.C.); (2) Defendant Premier Automotive Management, LLC (erroneously sued as Premier Automotive Management, L.L.C. dba Premier Automotive) (collectively "Moving Defendants") and (3) Plaintiff Ronald Silva (collectively, "Moving Parties") is CONDITIONALLY GRANTED, pending the resolution of the issues identified below. This is a PAGA-only action. On 8/2/2021, Plaintiff Ronald Silva, on behalf of himself and all others similarly situated, filed a Complaint for PAGA civil penalties for violations of the Labor Code, including failure to pay minimum wages, failure to pay overtime wages, failure to pay wages earned during employment, failure to pay meal and rest period premiums, failure to maintain accurate employment records, and failure to pay wages due upon separation of employment. (ROA #2.) Named Defendants are Premier Chevrolet of Buena Park, LLC; Premier Automotive Management, LLC; Premier Nissan of San Jose, LLC; Premier Automotive of Carlsbad, LLC; Premier Automotive HCDJ of California, LLC; Premier Automotive Imports of CA, LLC; Premier Automotive K of Carlsbad, LLC; Premier Automotive CJDR of Buena Park, LLC; Premier Automotive of CA, LLC; Premier Automotive of Claremont, LLC; Premier Automotive of Newark, LLC; Premier Automotive of Oakland PAH, LLC; Premier Automotive of Placentia, LLC; Premier Automotive of Seaside, LLC; Premier Automotive of Stevens Creek, LLC; and Premier Automotive of West Covina, LLC.